

MAINS MASTER PROGRAM (MMP) 2024

POLITY – 8

Comparison of the Indian Constitutional Scheme with that of Other Countries.

Indian Constitution Vs British Constitution

- Though both the constitutions are parliamentary democracy there are significant differences between both the political systems.
- **British & Indian Approach to parliamentary sovereignty**
 - ✓ The concept of **Parliamentary sovereignty** refers to the principle that the legislature has supreme authority over all other institutions, including the executive and the judiciary.
- **British Approach to parliamentary sovereignty**
 - ✓ **Unwritten Constitution** - The UK does not have a single written constitution. Instead, its constitution is made up of statutes, conventions, judicial decisions, and works of authority. This unwritten nature contributes to the flexibility and adaptability of parliamentary sovereignty.
 - ✓ **Unlimited Legislative Power** - Under the British model, Parliament has absolute legislative authority. There are no legal limits on the laws it can pass, and it can legislate on any matter. The courts do not have the power to invalidate or review the constitutionality of parliamentary statutes.
 - ✓ **Supremacy of the House of Commons** - Although the UK Parliament consists of the House of Commons, the House of Lords, and the Monarch, real political power resides in the elected House of Commons. The House of Lords can delay legislation but not block it indefinitely, and the Monarch's role is largely ceremonial.
 - ✓ **Restricted Judicial Review** - British courts do not have the power of judicial review to strike down parliamentary legislation. They interpret and apply laws, but they cannot question the validity of an Act of Parliament.
- **Indian Approach to parliamentary sovereignty**
 - ✓ **Written Constitution** - Unlike the UK, India has a comprehensive written constitution that is the supreme law of the land. The Constitution of India lays down the framework for the functioning of the government and defines the powers and limits of each branch, including the legislature.
 - ✓ **Constitutional Supremacy** - In India, the Constitution is supreme, not Parliament. All laws passed by the Parliament must conform to the Constitution. The power of Parliament is limited by the fundamental rights enshrined in the Constitution and other constitutional provisions.
 - ✓ **Judicial Review** - The Indian judiciary, particularly the Supreme Court, has the power of judicial review. It can review and invalidate any law or executive action that it finds unconstitutional. This power acts as a check on parliamentary sovereignty and ensures that laws adhere to constitutional principles.
 - ✓ **Separation of Powers** - The Indian Constitution enshrines the separation of powers among the legislature, executive, and judiciary. Each branch has distinct functions and checks and balances to prevent any one branch from becoming too powerful.

- ✓ **Basic Structure Doctrine** - The Indian judiciary has developed the "Basic Structure Doctrine," which asserts that certain fundamental features of the Constitution cannot be altered or destroyed by Parliament, even by way of a constitutional amendments. This doctrine limits the amending power of Parliament and protects the core principles of the Constitution.
- **Judicial system in India & United Kingdom – area of convergence & divergence**
 - ✓ **Area of Convergence**
 - **Common Law Tradition** - Both India and the UK are based on the common law tradition, where judicial precedents play a significant role in the interpretation of laws. This means that past judgments are used as references for deciding new cases, ensuring consistency and predictability in legal decisions.
 - **Independence of the Judiciary** - Both countries emphasize the independence of the judiciary as a cornerstone of their democratic systems. Judges in both jurisdictions are expected to operate free from political interference, ensuring impartiality and fairness in the adjudication process.
 - **Judicial Review** - While the scope of judicial review differs, both India and the UK have provisions for judicial review.
 - **Role of the Judiciary in Protecting Fundamental Rights** - Both judiciaries play a crucial role in protecting fundamental rights and liberties. In the UK, the Human Rights Act 1998 incorporates the European Convention on Human Rights into domestic law, allowing courts to review laws and actions for compatibility with human rights. In India, the Supreme Court has been proactive in safeguarding fundamental rights, often expanding the scope through progressive interpretation.
 - **Judicial Reforms and Modernization** - Both countries have undertaken judicial reforms to address issues such as backlog of cases, access to justice, and the use of technology in the judicial process. This includes measures to improve court efficiency and transparency.
 - ✓ **Area of divergence**
 - **Scope of Judicial Review** - In India, the judiciary has the power to review and strike down laws passed by the legislature if they are found to be unconstitutional. This power is more extensive compared to the UK, where parliamentary sovereignty limits judicial review to checking the compatibility of laws with the Human Rights Act and ensuring procedural propriety rather than invalidating primary legislation.
 - **Basic Structure Doctrine** - The Indian judiciary has developed the Basic Structure Doctrine, which holds that certain fundamental aspects of the Constitution cannot be altered by any amendments, thus placing a substantive limit on parliamentary power. The UK does not have an equivalent doctrine, as the concept of parliamentary sovereignty prevails, meaning Parliament can theoretically pass any law, including those altering constitutional conventions.

- **Judicial Activism** - The Indian judiciary is known for its judicial activism, particularly in public interest litigation (PIL), where courts have taken an expansive view of their powers to address social and environmental issues. The UK judiciary has been more restrained, with a stronger emphasis on the separation of powers and judicial restraint.
- **Appointment of Judges** - In India, the appointment of judges to the higher judiciary (Supreme Court and High Courts) involves the collegium system, where senior judges have a significant role in selecting judges. This system is unique to India. In the UK, judicial appointments are made by an independent Judicial Appointments Commission, ensuring a transparent and merit-based selection process.
- **Role of the Judiciary in Political and Administrative Matters** - The Indian judiciary often intervenes in political and administrative matters, sometimes leading to accusations of **judicial overreach**. In contrast, the UK judiciary generally adheres more strictly to the principle of **judicial restraint**, avoiding interference in political questions

➤ **Role of speaker India & United Kingdom**

- ✓ While the speaker's **Primary role & functions, tenure, expectations in terms neutrality & impartiality** in functioning are almost similar the defining differences between the two is the tradition of **once a speaker is always a speaker** in United Kingdom.
- ✓ **Once a speaker is always a speaker**
 - In the United Kingdom, there is a long-standing tradition known as "Once a speaker, always a speaker," which implies that once a Member of Parliament (MP) has been elected as the Speaker of the House of Commons, they typically do not return to party politics or engage in partisan activities, even after they retire or resign from the position.
 - This tradition emphasizes the Speaker's neutrality and impartiality, which are crucial for maintaining the integrity and fairness of parliamentary proceedings.
 - Key Aspects of the tradition - Neutrality and Impartiality, Re-Election as an Independent Candidate, Post-Speaker Career etc.

Questions

1. **Compare and contrast the Indian parliamentary system with that of the British parliamentary system with special reference to approach towards parliamentary sovereignty under their respective constitutions. [10]**
2. **To what extent do you think the judiciary in India & United Kingdom converge & diverge? [10]**
3. **What do you understand by the tradition "once a speaker always a speaker" followed in United Kingdom? How it is different from the Indian model? [10]**

Indian Constitution Vs Constitution of USA

- India and the United States are two of the world's largest democracies, but they are based on different constitutional frameworks and historical contexts. Despite their shared commitment to democratic principles, their political systems are shaped by distinct foundational tenets.
- **Basic Tenets of the Indian Political System**
 - ✓ Written Constitution
 - ✓ Parliamentary Democracy
 - Features – Bicameralism, Cabinet form of Government, Collective responsibility etc.
 - ✓ Federal Structure
 - Features – Distribution of legislative, executive & financial powers, Unitary bias etc.
 - ✓ No strict separation of powers with checks & balances
 - ✓ Wide scope of Judicial review
 - ✓ Secularism
 - ✓ Fundamental Rights [Reasonable restrictions]
 - ✓ Principle of Social Justice
- **Basic Tenets of the United States Political System**
 - ✓ Written Constitution
 - ✓ Presidential Democracy
 - Bicameral Legislature, President Head of the state & government, No principle of collective responsibility etc.
 - ✓ Federal Structure
 - Distribution of power between federal & state governments, federal supremacy clause etc.
 - ✓ Strict separation power with checks & balances
 - ✓ Wide scope of judicial review
 - ✓ Secularism
 - ✓ Bill of rights [No reasonable restrictions]
- **Presidential election in India & USA**
 - ✓ **Presidential election – INDIA**
 - Qualification – Citizen of India
 - Election – Indirect (electoral college)
 - Electoral college – elected MPs + elected MLAs of states & UT of Delhi & Puducherry
 - Principle – Proportional representation by single transferable vote.
 - Term – 5 years
 - Process
 - a) **Nominations:** Candidates are nominated by political parties or can stand as independent candidates. They must be proposed and seconded by at least 50 electors.

- b) **Voting:** The election is conducted by secret ballot, with each elector casting a vote for their preferred candidate. The votes are counted and the candidate with electoral quota is declared elected.
- c) **Inauguration:** The elected President is inaugurated on July 25, following the completion of the electoral process.

✓ **President election in USA**

- Qualification – Natural-born citizen of USA
- Election – Indirect (electoral college)
- Electoral college – state legislature by law will determine; Composition – 538 (100 + 435 + 3)
- Majority – absolute in electoral college
- Term – 4 years
- Process
 - a) **Primaries and Caucuses:** The election process begins with primary elections and caucuses in each state, where political parties select their candidates. These are held from early in the election year up until the summer.
 - b) **Party Conventions:** Each major party holds a national convention where delegates officially nominate their party's candidate for President and Vice President
 - c) **General Election:** The general election is held on the first Tuesday after the first Monday in November. Voters cast their votes for electors, who then vote for the President in December.

➤ **Vice President India & USA**

✓ **Vice President of India**

- **Role and Functions** - The Vice President of India serves as the ex officio Chairman of the Rajya Sabha (Council of States), the upper house of the Indian Parliament. In this capacity, the Vice President's primary role is to preside over the Rajya Sabha and ensure the orderly conduct of its proceedings.
- **Acting President** - In the event of the President's death, resignation, removal, or inability to discharge their duties, the Vice President serves as the Acting President of India until a new President is elected.
- **Limited Executive Powers** - The Vice President of India does not hold significant executive powers and does not play a major role in the day-to-day functioning of the government. The role is largely ceremonial, with the main functions being related to the parliamentary duties in the Rajya Sabha.
- **Casting Vote** - As the Chairman of the Rajya Sabha, the Vice President has a casting vote in case of a tie but generally does not participate in debates or votes.
- **Elected by electoral college** - The Vice President is elected by an Electoral College consisting of members of both houses of Parliament (Lok Sabha and Rajya Sabha). The election is conducted using a single transferable vote system.

- **Term** - The Vice President serves a five-year term and is eligible for re-election. There are no term limits.
- **Succession and Impeachment** - In the event of a vacancy in the office of the Vice President, the process for election is initiated **as soon as possible**. The Vice President can be removed from office by a **resolution passed** by the **Rajya Sabha and agreed to by the Lok Sabha**.

✓ **Vice President of USA**

- **Role and Functions** - The Vice President of the United States serves as the President of the Senate, the upper house of the U.S. Congress. The Vice President's primary function in this role is to preside over Senate sessions and cast tie-breaking votes.
- **Successor to the President** - The Vice President is first in the line of succession to the Presidency. If the President dies, resigns, is removed from office, or becomes incapacitated, the Vice President assumes the role of President.
- **Executive Role** - Unlike in India, the U.S. Vice President can have a significant role in the executive branch, depending on the responsibilities delegated by the President. The Vice President often serves as a close advisor to the President and may be involved in policymaking, diplomatic efforts, and other executive functions.
- **Casting Vote** - The Vice President has the authority to cast a tie-breaking vote in the Senate, which can be crucial in passing legislation.
- **Elected by electoral college** – Vice-president is chosen by the Electoral College based on the outcome of the presidential election.
- **Term** - The Vice President serves a **four-year term** and can be re-elected indefinitely.
- **Succession and Impeachment** - The Vice President automatically becomes President upon the **death, resignation, or removal** of the sitting President. The Vice President can be impeached and removed from office by Congress, like the President.

➤ **Position of Speaker under the Constitution of India & USA**

✓ **Position of Speaker – India**

- **Role and Functions**
 - a) **Presiding Officer**: The Speaker is the presiding officer of the Lok Sabha, the lower house of India's Parliament. The Speaker's primary role is to maintain order and decorum during debates, ensuring that the business of the house is conducted in an orderly manner.
 - b) **Neutrality and Impartiality**: The Speaker is expected to be impartial and above party politics. Once elected, the Speaker resigns from their party and refrains from participating in party activities to uphold neutrality.

- c) **Administrative Responsibilities:** The Speaker oversees the administrative functions of the Lok Sabha, including managing its secretariat and ensuring the smooth functioning of its committees.
- d) **Casting Vote:** The Speaker does not vote in regular proceedings but has a casting vote in case of a tie, ensuring the decision-making process is not deadlocked.
- **Powers and Responsibilities**
 - a) **Control Over the Agenda:** The Speaker has significant control over the agenda of the house, deciding which bills and motions are to be taken up for discussion.
 - b) **Disciplinary Authority:** The Speaker has the authority to maintain discipline in the house, including the power to suspend or expel members for unruly behaviour.
 - c) **Certification of Bills:** The Speaker certifies whether a bill is a Money Bill, which affects how the bill is processed in Parliament and its susceptibility to amendments.
- **Election and Term**
 - a) **Election:** The Speaker is elected by the members of the Lok Sabha from among themselves. The election is typically based on consensus, though it may sometimes involve a contest.
 - b) **Term:** The Speaker serves for the duration of the Lok Sabha, which is a maximum of five years, unless the Speaker resigns or is removed by a majority vote of the members.
- ✓ **Position of speaker – USA**
 - **Role and Functions**
 - a) **Presiding Officer:** The Speaker is the presiding officer of the House of Representatives, the lower house of the U.S. Congress. The Speaker's duties include overseeing house proceedings, ensuring that debates follow the rules, and maintaining order.
 - b) **Political Leader:** Unlike in India, the U.S. Speaker is a prominent political figure and often the leader of the majority party in the House. The Speaker plays a crucial role in setting the legislative agenda and representing the party's interests.
 - c) **National Political Figure:** The Speaker is third in the line of succession to the Presidency, following the Vice President, highlighting the Speaker's significant role in national politics.
 - **Powers and Responsibilities**
 - a) **Control Over Legislation:** The Speaker has substantial control over the legislative agenda, including deciding which bills and issues come up for discussion and vote. This includes referring bills to appropriate committees.

- b) **Committee Appointments:** The Speaker has the authority to appoint members to committees, including the powerful Rules Committee, which influences the flow of legislation.
 - c) **Leadership Role:** The Speaker leads the majority party in the House, coordinating strategy, managing party discipline, and working to secure passage of key legislation.
- **Election and Term**
 - a) **Election:** The Speaker is elected by the members of the House of Representatives. The election occurs at the beginning of a new Congress, typically every two years, and requires a majority vote.
 - b) **Term:** The Speaker serves at the pleasure of the House members and may be re-elected indefinitely as long as they continue to secure the majority support.
- **Notion of Equality in the constitution of India & USA**
 - ✓ **Notion of equality in USA**
 - **Historical Context:** The U.S. Constitution was adopted in 1787, with the Bill of Rights added in 1791. Initially, it did not explicitly mention equality. However, the principle of equality under the law has evolved through constitutional amendments and judicial interpretation.
 - **Key Constitutional Provisions: 14th Amendment (1868):** The most significant provision concerning equality is the Equal Protection Clause of the 14th Amendment, which states, "No state shall... deny to any person within its jurisdiction the equal protection of the laws." This amendment was a response to issues of racial inequality, especially following the Civil War.
 - **Formal Equality:** The U.S. Constitution emphasizes formal equality, ensuring that laws apply equally to all individuals. It aims **to prevent discrimination based on race, gender, religion, or other characteristics**.
 - ✓ **Notion of Equality in India**
 - **Historical Context:** The Indian Constitution was adopted in 1950, after India gained independence from British rule. It was crafted to address the social, economic, and political inequalities entrenched in Indian society, including caste discrimination and gender inequality.
 - **Key Constitutional Provisions:**
 - a) **Article 14:** Guarantees equality before the law and equal protection of the laws within the territory of India.
 - b) **Articles 15 and 16:** Prohibit discrimination on grounds of religion, race, caste, sex, or place of birth. They also provide for affirmative action, allowing the state to make special provisions for the advancement of socially and educationally backward classes.
 - c) **Article 17:** Abolishes untouchability and forbids its practice in any form

- d) **Directive Principles of State Policy:** While not justiciable, these principles (Part IV of the Constitution) guide the state in ensuring social and economic justice, which includes promoting equality.
- **Substantive Equality:**
 - a) The Indian Constitution goes beyond formal equality, emphasizing substantive equality.
 - b) Substantive equality refers to a concept of equality that goes beyond merely treating everyone the same (formal equality) and aims to address underlying disparities and inequalities in society.
 - c) The goal of substantive **equality is to achieve real**, meaningful equality by considering the **differences & historical exploitation & injustice** to certain sections of the people and ensuring that all individuals have access to the same opportunities and resources, regardless of their background or circumstances.
 - d) **Affirmative Action to address social injustice:** Substantive equality often involves the use of affirmative action or positive discrimination to support disadvantaged or marginalized groups. This can include quotas, scholarships, targeted support programs, or other measures designed to level the playing field.

Questions

1. Compare and bring out the differences between the political system of India & USA. [10]
2. Analyse the distinguishing features of the notion of Equality in the Constitutions of the USA and India. [10]
3. Compare the process of election of president of India & USA and their respective constitutional positions. [10]
4. The Vice President's role in India is primarily ceremonial, with limited executive authority and a focus on parliamentary functions. In contrast, the Vice President of the United States can play a more active role in the executive branch, depending on the responsibilities assigned by the President. Comment [10]
5. The roles of the Speaker in India and the United States reflect the differing political cultures and structures of the two countries. Elaborate [10]

Indian Constitution Vs Constitution of France

➤ Constitution of France

- ✓ Written
- ✓ Rigid
- ✓ Unitary
- ✓ Bicameralism (National Assembly & Senate)
- ✓ Quasi-Presidential & Quasi-parliamentary System
- ✓ Election of President (Direct Vs Indirect)
- ✓ System of Administrative courts

✓ **Secularism**

➤ **Process of election and position of President of France & India**

✓ **Process of election & Position of President – France**

- **Electoral System:** The President of France is **directly elected by the people**. The election is conducted using a two-round system. If no candidate receives an absolute majority of the vote in the first round, a second round is held between the two candidates with the most votes.
- **Majority Requirement:** The President must **secure more than 50%** of the votes in the second round to be elected.
- **Process:**
 - a) **First Round:** Multiple candidates from various political parties and independents contest in the first round. If a candidate receives an absolute majority, they are declared the winner.
 - b) **Second Round:** If no candidate wins outright in the first round, the top two candidates face off in a second round. This ensures that the President has broad support.
 - c) **Inauguration:** The elected President takes office on a designated date, succeeding the outgoing President.
- **Eligibility Requirements:** A candidate must be at least 18 years old and possess French citizenship. They must also fulfil certain legal requirements, including having a clean criminal record and meeting financial obligations.
- **Term Limit:** The President serves a **five-year term** and may be **re-elected once, for a total of two terms**.
- **Powers and Role:** The French President is the **head of state** and has significant executive powers, including appointing the Prime Minister, presiding over the Council of Ministers, and representing France internationally. France operates under a **semi-presidential system, where the President and Prime Minister may be from different political parties, leading to cohabitation**.

✓ **Process of election & Position of President – India**

- **Electoral System:** The President of India is elected by an **Electoral College**, **indirectly** consisting of elected members of both houses of Parliament and the elected members of the Legislative Assemblies of States and Union Territories.
- **Proportional Representation:** The election uses a single transferable vote system, where each vote has a different weight based on the population of the states.
- **Process:**
 - a) **Nominations:** Candidates are nominated by members of the Electoral College. A candidate must be proposed by at least 50 electors and seconded by another 50.
 - b) **Voting:** The voting is by secret ballot. Electors rank candidates according to their preference, and votes are counted according to the proportional representation system.

c) **Inauguration:** The elected President takes office on July 25, following the completion of the election process.

- **Eligibility Requirements:** A candidate must be a citizen of India, at least 35 years old, and eligible to be a member of the Lok Sabha. They must also not hold any office of profit under the Government of India or any state government.
- **Term:** The President serves a five-year term and can be re-elected. There is no limit on the number of terms.
- **Powers and Role:** The Indian President is the **ceremonial head of state** with limited executive powers. The President's role is largely symbolic, with most powers being exercised by the Council of Ministers headed by the Prime Minister. The President acts as **a custodian of the Constitution**, ensuring that the government operates within its bounds. The President can also seek judicial advice and give assent to bills.

➤ **French system of administrative courts**

- ✓ The system of administrative courts in France, known as "jurisdiction administrative," is a specialized judicial system that deals exclusively with disputes between public authorities and private individuals or entities.
- ✓ This system operates parallel to the ordinary judicial system (civil and criminal courts) and is a distinctive feature of French administrative law.
- ✓ **Key Features of the French Administrative Court System**
 - **Dual Legal System:** France operates under a dual legal system, separating administrative and ordinary (civil and criminal) jurisdictions. Administrative courts handle cases involving public law, particularly disputes concerning the actions and decisions of public authorities. Ordinary courts deal with private law matters.
 - **Scope of Jurisdiction:** The administrative courts have jurisdiction over disputes between public authorities and individuals or private entities, including cases involving local authorities, public institutions, and state-owned companies. They deal with issues such as administrative decisions, regulatory measures, public contracts, civil service disputes, and urban planning.
 - **Judicial Review and Administrative Law:** Administrative courts have the power of judicial review over administrative acts, ensuring that public authorities act within the bounds of the law. This includes reviewing the legality of administrative decisions and regulations and ensuring they comply with statutory and constitutional provisions.
 - **Principle of Separation of Powers:** The separation between administrative and ordinary jurisdictions reflects the principle of separation of powers in the French legal system. The administrative judiciary ensures that the executive branch is accountable for its actions without interference from the ordinary judiciary, maintaining a distinct boundary between public and private law.
 - **Procedural Aspects:** Administrative courts operate under their own procedural rules, distinct from those of ordinary courts. The procedures are generally less

formal, and the courts can take an inquisitorial approach, actively investigating the facts of the case.

Questions

1. Briefly describe the procedures through which the Presidents of India and France are elected [10]
2. What do you understand by the system of administrative courts? Comment on the features of administrative courts in France [10]

Indian Constitution Vs Constitution of Japan

➤ Constitution of Japan

- ✓ Written
- ✓ Rigid
- ✓ Unitary
- ✓ Constitutional Monarchy
- ✓ Bicameralism (House of Representatives & House of Councilors)
- ✓ Supremacy of Constitution & Judicial Review
- ✓ Parliamentary Govt.

Indian Constitution Vs Russian Constitution

➤ Constitution of Russia

- ✓ Written
- ✓ Rigid
- ✓ Federal
- ✓ Bicameralism (State Duma & Federation Council)
- ✓ Separation of Powers
- ✓ President & Prime Minister (PM & CoM's – Appointed & Removed by President)

Indian Constitution Vs Constitution of China

➤ Indian Constitution Vs Russian Constitution

- ✓ Written
- ✓ Rigid (One Party – Flexible)
- ✓ One Party System (Communist Part of China)
- ✓ Unitary
- ✓ Unicameralism (National People's congress)
- ✓ President – Indirectly Elected (NPC)
- ✓ Prime Minister (Appointed by President with approval of NPC)

Indian & Western approaches to Secularism

➤ Indian Approach to secularism

- ✓ Definition and Context:

- a) India's approach to secularism is shaped by its history as a diverse, multi-religious society. It aims to promote peaceful coexistence among various religious communities.
- b) Secularism in India is understood as equal respect and treatment of all religions by the state. The Indian Constitution, particularly in its Preamble and Articles 25 to 28, guarantees the right to freedom of religion and emphasizes the state's neutrality towards all religions.

✓ **Features**

- a) **Religious Pluralism:** The state does not have an official religion and treats all religions equally. This is sometimes described as "principled distance," where the state maintains a principled distance from all religions but intervenes when necessary to ensure equality and justice.
- b) **Freedom of Religion:** Individuals have the right to practice, profess, and propagate their religion freely. However, this freedom is subject to public order, morality, and health considerations.
- c) **Interventionist Secularism:** The Indian state sometimes intervenes in religious affairs to uphold social reforms, such as abolishing untouchability or allowing women to enter certain religious spaces. This approach is based on the belief that some religious practices may need regulation to ensure social justice and equality.
- d) **Cultural Secularism:** Indian secularism accommodates religious symbols and practices in public life, such as state participation in religious festivals or holidays, reflecting the cultural integration of religion in everyday life.

✓ **Western Approach to Secularism**

- **Definition and Context:**

- a) Western secularism, particularly as practiced in Europe and North America, generally emphasizes the strict separation of church and state.
- b) It originated from the Enlightenment period, which advocated for the separation of religious and governmental institutions to protect individual freedoms and prevent religious conflicts.

- **Features:**

- a) **Strict Separation:** In many Western countries, the state maintains a strict separation from religious institutions. The government does not support or endorse any religion, and religious symbols are often excluded from public institutions and spaces.
- b) **Neutrality:** The state is neutral regarding religious matters, ensuring that it neither favours nor discriminates against any religion. This neutrality is intended to protect individual freedoms and prevent religious influence on public policy.
- c) **Freedom of Religion:** Individuals have the right to practice their religion freely, as long as it does not infringe on the rights of others or public order. Religious freedom is considered a fundamental human right.

- d) **Public Sphere Secularism:** In some countries, secularism extends to the public sphere, where religious symbols and expressions are restricted in public institutions such as schools and government buildings. This is intended to maintain a secular public space that is free from religious influence.

Question

1. Compare & contrast between the Indian and the Western approaches to Secularism. [10]

